

cc: Mr. Wilson



BROWN & WILLIAMSON TOBACCO CORPORATION

1600 West Hill Street - Louisville, Kentucky 40232

ERNEST PEPPLES
VICE PRESIDENT
AND GENERAL COUNSEL

TELEPHONES
(502) 774-7288
(502) 774-7011

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The Honorable Carol M. Thomas
Secretary
The Federal Trade Commission
Washington, DC 20580

Dear Mr. Thomas:

This refers to your letter dated 8 November 1979 regarding our request for confidential treatment of the Roper Study and the Commission's plan to release it on the basis that "all of your company's significant competitors in the cigarette business" have it. American Tobacco Company is a substantial competitor and unless the FTC has already given the report to American it does not possess it.

The Roper Study was privately funded and undertaken for a private business function. Your release will benefit our competitors who do not have it and will benefit other business adversaries of Brown & Williamson. We protest your release of a study obtained under compulsory process in a non-public investigation.

Brown & Williamson has already addressed a motion to Judge Barrington Parker relating to the Roper Study and related issues of confidentiality and you are hereby informed that if you release the Roper Study before we have had an opportunity for a hearing on this matter we will press for appropriate judicial sanction.

There is no urgency in disclosing the Roper Study or information contained in it and you surely can wait until the court has ruled.

Very truly yours,

Ernest Pepples

Ernest Pepples
/dlb